

Turning to the first of the *NBC Subsidiary* findings, in footnote 46 *NBC Subsidiary* listed examples of various interests that courts have identified as potentially constituting an overriding interest to justify closure of courtroom proceedings and by inference sealing otherwise open court documents. They include an accused's interest in a fair trial; a civil litigant's right to a fair trial; protection of minor victims of sex crimes from further trauma and embarrassment; privacy interests of a prospective juror during individual voir dire; protection of witnesses from embarrassment or intimidation so extreme that it would traumatize them or render them unable to testify; protection of trade secrets; protection of information within the attorney-client privilege; enforcement of binding contractual obligations not to disclose; safeguarding national security; ensuring the anonymity of juvenile offenders in juvenile court; ensuring the fair administration of justice; and preservation of confidential investigative information. (*NBC Subsidiary, supra*, 20 Cal.4th at p. 1222, fn. 46, 86 Cal.Rptr.2d 778, 980 P.2d 337.)

Here, Petitioner request to seal of proprietary business and financial information, including its Incentive and Compensation and Change Control Plan and related agreements are the type of overriding interest *NBC Subsidiary* that justify sealing.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2506046	ESPARZA VS CR&R INCORPORATED	MOTION TO BE RELIEVED AS COUNSEL FOR RICK ESPARZA

Tentative Ruling: Plaintiff's Motion to be Relieved as Counsel is granted upon compliance with CRC §3.1362(d).

5.

CASE #	CASE NAME	HEARING NAME
CVRI2600253	MALHOTRA VS RIVIAN AUTOMOTIVE, INC.	DEMURRER TO ANSWER ON COMPLAINT

Tentative Ruling: Plaintiff's Demurrer as to the 28th and 44th Causes of Action is sustained, and overruled as to the remainder.

The California Code of Civil Procedure provides three grounds for a demurrer to an answer:

- a) The answer does not state facts sufficient to constitute a defense.
- b) The answer is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible.
- c) Where the answer pleads a contract, it cannot be ascertained from the answer whether the contract is written or oral.

CCP § 430.20. CCP § 430.050 provides that a demurrer to an answer may be taken in whole or to one or more of the defenses.

CCP § §430.20(a) provides that a demurrer to an answer be made on the ground that an answer "does not state facts sufficient to constitute a defense." However, there are